

10. Adoption of deeds. — It is not necessary that a creditor, to entitle himself to the benefit of the deed, should execute it, but it will be sufficient if he assent to it, or acquiesce in it, or act upon its provisions, and comply with its terms (*f*). But the creditor must do some act to testify his acceptance of the deed, and not merely stand by and remain passive (*g*).

11. Disputed debt. — If the trustees permit a person to sign the deed as creditor in a certain sum specified in the schedule, they cannot afterwards contest the debt (*h*). But where there has been fraud, forgery, or perjury by the creditor, the trustees can apply to the Court to have the execution by the creditor set aside (*i*).

[*523] ***12. Trustee cannot arbitrarily admit a creditor who has repudiated the deed.** — A creditor who repudiates the deed by his acts, as by suing the debtor contrary to the provisions of the deed, will not be allowed afterwards (more particularly after a long lapse of time) to retrace his steps and take the benefit of the deed; and though the trustees should admit him to sign the deed, the other creditors will not be bound by the act of the trustees (*a*).

13. Discretion in trustees to admit creditors' claims. — A *discretion* is sometimes given to the trustees to admit or exclude such creditors as they shall think proper. The Court will endeavour, if possible, to withdraw the rights of the creditors from the caprice of the trustees (*b*); but if the settlement clearly give such a discretionary power, and the trustees are willing to exercise it, and no fraud be found, the Court cannot interfere to compel the admission of any particular creditor (*c*).

14. Relief in equity. — If the trustees have power of enlarging the time and advertise to that effect, but do not

(*f*) *Field v. Lord Donoughmore*, 1 Dru. & War. 227; *Biron v. Mount*, 24 Beav. 642; *Spottiswoode v. Stockdale*, G. Coop. 102; *Jolly v. Wallis*, 3 Esp. 228.

(*g*) *Biron v. Mount*, 24 Beav. 642.

(*h*) *Lancaster v. Elce*, 31 Beav. 325.

(*i*) *Lancaster v. Elce*, 31 Beav. 328, *per M. R.*

(*a*) *Field v. Donoughmore*, 1 Dru. & War. 227; reversing the decision of Lord Plunket, 2 Dru. & Walsh, 630; *Re Meredith*, 29 Ch. D. 745.

(*b*) See *Nunn v. Wilsmore*, 8 T. R. 521; *Cosser v. Radford*, 1 De G. J. & S. 585.

(*c*) *Wain v. Egmont*, 3 M. & K. 445; *Drever v. Mawdesley*, 16 Sim. 511.